THE FATAL ACCIDENTS ACT, 1855

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IndiaCode

THE FATAL ACCIDENTS ACT, 1855

ACT NO. 13 OF 1855[1]

[27*th March*, 1855.]

An Act to provide compensation to families for loss occasioned by the death of a person caused by actionable wrong.

Preamble.—WHEREAS no action or suit is now maintainable in any Court against a person who, by his wrongful act, neglect or default, may have caused the death of another person, and it is often-times right and expedient that the wrong-doer in such case should be answerable in damages for the injury so caused by him. It is enacted as follows:—

[2][**1. Short title and extent**.—(*1*) This Act may be called the Fatal Accidents Act, 1855.

(*2*) It extends to the whole of India [3][***].]

[4][**1A**.] **Suit for compensation to the family of a person for loss occasioned to it by his death by actionable wrong**.—Whenever the death of a person shall be caused by wrongful act, neglect or default, and the act, neglect or default is such as would (if death had not ensured) have entitled the party injured to maintain an action and recover damages in respect thereof, the party who would have been liable if death had not ensued, shall be liable to an action or suit for damages, notwithstanding the death of the person injured and although the death shall have been caused under such circumstances as amount in law to felony or other crime.

[5]** * Every such action or suit shall be for the benefit of the wife, husband, parent and child, if any, of the person whose death shall have been so caused, and shall be brought by and in the name of the executor, administrator or representative of the person deceased;

and in every such action, the Court may give such damages as it may think proportioned to the loss resulting from such death to the parties respectively, for whom and for whose benefit such action shall be brought, and the amount so recovered, after deducting all costs and expenses, including the costs not recovered from the defendant, shall be divided amongst the before-mentioned parties, or any of them, in such shares as the Court by its judgment or decree shall direct.

2. Not more than one suit to be brought.—Provided always that not more than one action or suit shall be brought for, and in respect of the same subject-matter of complaint [6]***:

Claim for loss to the estate may be added.—Provided that, in any such action or suit, the executor, administrator or representative of the deceased may insert a claim for, and recover any pecuniary loss to the estate of the deceased occasioned by such wrongful act, neglect or default, which sum, when recovered, shall be deemed part of the assets of the estate of the deceased.

3. Plaintiff shall deliver particulars, etc.—The plaint in any such action or suit shall give a full particular of the person or persons for the whom, or on whose behalf, such action or suit shall be brought, and of the nature of the claim in respect of which damages shall be sought to be recovered.

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1. The Act has been extended to Laccadive, Minicoy and Amindivi Islands by Reg. 8 of 1965, s. 3 and Sch., and to the Union territory of Pondicherry by Act 26 of 1968, s. 3 and Sch.
2. Ins. by Act 3 of 1951, s. 3 and Sch (w.e.f. 1-4-1951).
3. The words "except the State of Jammu and Kashmir" omitted by Act 34 of 2019, s. 95 and the Fifth Schedule (w.e.f. 31-10- 2019).
4. Original s. 1 re-numbered as s. lA by Act 3 of 1951, s. 3 and Sch. (w.e.f 1-4-1951).
5. The words "And it is enacted further that" omitted by Act 10 of 1914, s. 3 and Second Sch. (w.e.f. 17-3-1914).
6. The words "and that every such action shall be brought within twelve calendar months after the death of such deceased person" omitted by Act 9 of 1871, s. 2 and First Sch. (w.e.f. 24-3-1871). For limitation, *see* now the Indian Limitation Act, 1963 (36 of 1963).

4. Interpretation clause.—The following words and expressions are intended to have the meanings hereby assigned to them respectively, so far as such meanings are not excluded by the context or by the nature of the subject-matter; that is to say [1]*** the word “person”, shall apply to bodies politic and corporate; and the word "parent" shall include father and mother and grand-father and grand-mother; and the word "child" shall include son and daughter, and grand-son and grand-daughter and step-son and step-daughter.

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1. Certain words omitted by Act 10 of 1914, s. 3 and Second Sch. (w.e.f. 17-3-1914).